

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 7, Honorable Charles F. Adams Presiding

T. Duarte, Courtroom Clerk
191 North First Street, San Jose, CA95113
Telephone: 408.882.2170

To contest a tentative ruling, you must:

1. Call (408) 808-6856 before 4:00 P.M. and leave a voicemail message containing the information described below, and
2. Notify the other side before 4:00 P.M. that you will appear at the hearing to contest the tentative ruling.

In the voicemail message, please state your case name, case number, the name of the attorney and contact number. It would also be helpful if you could identify the specific portion or portions of the tentative ruling that will be contested.

PLEASE NOTE:

- If you do not notify the Court and/or opposing side as required by California Rule of Court, rule 3.1308(a)(1) and Probate Local Rule 2(A), the Court will not hear argument and the tentative ruling will be adopted *even if* all parties appear at the hearing.
- Sending an email to the department will not suffice to constitute notice to the Court of the need for a hearing regarding a tentative ruling.

Court reporters are not provided. Please consult our Court's website, www.sccscourt.org, for the rules, policies, and required forms for appointment by stipulation of privately-retained court reporters.

- **Parties can appear either in person or remotely.** All remote appearances must be made through UDC, unless otherwise arranged with the Court. Please go to <https://santaclara.courts.ca.gov/online-services/remote-hearings> to find the appropriate link. Also, please note that that you must register in advance to appear remotely.
- As a reminder, state and local Court Rules prohibit recording of court proceedings without a Court order. This prohibition applies while in the courtroom and while appearing remotely.

PROBATE TENTATIVE RULINGS FOR:

DATE: MARCH 4, 2026 TIME: 10:00 A.M.

PREVAILING PARTY SHALL PREPARE THE ORDER

UNLESS OTHERWISE STATED (SEE [RULE OF COURT 3.1312](#))

LINE #	CASE #	CASE TITLE	RULING
LINE 1	24PR197239	Herrera Family Trust dated July 21, 2008	Hearing on Order to Show Cause. Parties must appear.
LINE 2			
LINE 3			
LINE 4			
LINE 5			
LINE 6			
LINE 7			
LINE 8			
LINE 9			

LINE 10			
LINE 11			
LINE 12			
LINE 13			

Calendar Line 1

Case Name: *The Declaration of Trust of Gerald M. Ley and Dollie S. Ley, dated 5/3/1991*
Case No.: 24PR196871

INTRODUCTION

Petitioner Marilyn Ley Hawke seeks removal of co-trustee Laurel Ley Wright from the Declaration of Trust of Gerald M. Ley and Dollie S. Ley (“the Trust”) dated May 3, 1991, as amended. Gerald¹ and Dollie established the Trust on May 3, 1991, and subsequently amended it six times. (First Amended Petition [“FAP”] at ¶ 2.) Gerald died on August 5, 2003, and Dollie died November 6, 2023, leaving daughters, Marilyn and Laurel as co-trustees. (*Id.* at ¶¶ 3, 5.) The Trust was reformed by a court order on May 30, 2024. (*Id.* at ¶ 6.) The Charters Avenue property was sold for \$4,200,000 on August 30, 2024. (*Id.* at ¶ 9.)

Petitioner alleges Respondent used trust funds totaling \$44,069.07 for personal expenses in Florida and Arkansas, including veterinary bills, pharmacy costs, pet supplies, storage units, and dog food services. (FAP at ¶ 11.) Petitioner made repeated requests to cease using trust funds for Respondent’s personal expenses as early as March 18, 2024. (*Id.* at ¶ 12.) However, Petitioner alleges Respondent refused to stop using the BMO checking accounts and Dollie’s Nordstrom credit card for her personal expenses, even after Dollie’s death. (*Ibid.*) Petitioner closed the BMO accounts on November 1, 2024 and transferred funds to a RBC account requiring dual signatures. (FAP at ¶ 13.) The outstanding trust expenses total \$130,704.50 plus penalties and late fees that Petitioner alleges the Trust is unnecessarily incurring. (*Id.* at ¶ 14.)

Petitioner further alleges Christopher McCarthy, the only grandchild, is entitled to \$100,000 per the Fourth Amendment to the Trust. (FAP at ¶ 18.) However, Respondent demands a \$27,250 offset without documentation. (*Id.* at ¶¶ 18, 19.) Respondent has blocked partial distributions of \$1,000,000 to each remainder beneficiary despite previous agreements. (*Id.* at ¶ 21.) Petitioner seeks court authorization to make this distribution plus 10 percent interest on Christopher McCarthy’s bequest from November 6, 2024. (*Id.* at ¶ 23.)

Petitioner alleges Respondent changed the locks on storage unit A018 containing her personal property and consolidated items from three storage units, making identification impossible. (FAP at ¶¶ 34-38.) Petitioner alleges Respondent took their father’s diamond ring and mother’s pearl ring without authorization. (*Id.* at ¶ 31.) The 2006 Mercedes E350 remains at Petitioner’s residence since September 2023 with \$3,283.11 in costs for maintenance, which Respondent refuses to do. (*Id.* at ¶¶ 26, 27.) Petitioner also alleges Respondent delayed the sale of the Saratoga condo by waiting five days to respond to an offer and making unreasonable demands. (*Id.* at ¶¶ 16, 17.)

¹ The court will refer to the parties and other individuals by first name for the sake of clarity. No disrespect is intended.